

Order Denying Rehearing

Petition denied

The panel has considered A.R.M.’s timely October 24 petition for rehearing. The petition asks for clarification of the aggregate-risk, official-acquiescence, and meaningful-consideration instructions but seeks no change to record composition, proffer exclusion, petition timing, or the ultimate vacatur and remand. The panel concludes that the September 9 opinion already identifies the supported interactions and evidence the agency must address while reserving factual findings to the agency.

Panel rehearing is DENIED on November 7, 2025. No member requests a poll for rehearing en banc, and the judgment and opinion remain unchanged. The court does not add a merits rationale or narrow the remand through this order. The correction of P-7, exclusion of later material, three vacated analytical components, denial of the actual timing challenge, and limited grant of the petition continue to govern.

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Mandate consequence

Under Rule 41(b), the mandate ordinarily issues seven days after entry of this denial order when that date is later than the original no-petition schedule. Seven days after November 7 is November 14, 2025. The docket contains no timely stay motion associated with this rehearing petition and no order setting a different date. The clerk shall use November 14 unless a qualifying filing or order intervenes.

This calculation does not imply that rehearing was untimely or that the petition had no effect. The timely filing prevented reliance on October 31 and made the actual denial the later trigger. The clerk shall serve this order on both parties, retain the petition and denial with the post-judgment docket, and prepare the opinion and judgment for issuance as mandate on the stated date.